Term of Service

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> **Humaninity** — the unexplainable truths and values that a functional human is. The quality the Custodian Lottery Republic exists to protect.

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A novel of the Custodian Lottery Republic.

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1. The Draw

The letter came to the depot, which was the first strange thing, because nothing came to the depot except parts and people who wanted to complain about parts.

Dell Marchetti was under the back end of a 2041 Volgren electric when Sunny leaned down and held an envelope in her sightline. Cream paper. The little gold meridian stamped in the corner, the circle with the line through it that was on everything the Republic touched, from the bus timetables to the hospital wristbands to the back of her own licence.

“That’s a Draw,” Sunny said. He had a tone like he’d found a snake.

“It’s not a Draw.”

“It’s cream and it’s got the thing on it.”

“Rates notice.”

“Rates don’t come to work, Dell.”

She slid out on the trolley and lay there looking at the envelope against the depot’s corrugated ceiling. Forty-one years old. Fourteen of them at Carseldine, twenty-two in a workshop of one kind or another. Her name was on the roll because everyone’s name was on the roll, and the chance in any given year was about one in forty thousand, and she had never once thought about it because people in Carseldine did not get Drawn. People in Carseldine fixed the buses that took the Drawn to the airport.

She opened it lying down, which she’d think about later. Like she didn’t want to be standing up for it.

Adele Marchetti. You have been selected by stratified civic lottery to serve in the Assembly of the Republic for a term of three years commencing the first Monday of February. This is not an invitation. It is a draw.

Then a lot of other words. Income replacement at her current rate plus loading. Housing in Canberra for her and dependants, or travel if she preferred to keep the kid in his school. One deferral permitted, for up to twelve months, for cause. A number to call. A name: a Custodian, Returning Office, who would be "her Custodian" for the induction period, and she noticed even then the possessive and didn't like it.

"Well?" Sunny said.

"Rates," Dell said, and got back under the bus.

She told Kit that night because he was seventeen and would find out anyway; the names were published Friday. He read it twice at the kitchen bench with his thumbs hooked in his pockets, the way he read everything now, like it was going to try to sell him something.

"Three years."

"One third of the Assembly rotates every year. So I'd come in with a hundred others and there'd be two hundred already there who know what they're doing."

"You read the whole thing."

"I read the whole thing."

"You're going to defer."

She had meant to. She had been composing the deferral in her head since the trolley: sole parent, a son in his final two years of school, a depot that was already two mechanics short because of the war. All true. All cause.

"I'm thinking about it," she said, and Kit looked at her like she'd said something in another language.

"They're going to make you vote on it," he said. "The war. Every Thursday. You know that. You'll be on the news with a lanyard going *I voted to continue* and some kid from Townsville comes home in a box and it's your name on the Requirement."

"The public votes on the war. Not the Assembly."

"The Assembly writes the question."

She didn't have an answer for that, which was the second strange thing, because she usually did.

The thing nobody tells you about the Draw is how ordinary the week after is. The buses still broke. Mrs Adeyemi next door still wanted to know if it was true and then wanted to know if Dell would be meeting the Speaker and then wanted to know if she could put the bins out for Dell on Tuesdays once she'd gone, as if Canberra were the moon. The names were in the Friday paper, all hundred of them, with a town and an age and a line of occupation, and Dell found hers between a Darwin midwife and a boy from Mildura who was nineteen and listed as *student (apprentice, refrigeration)*.

Her Custodian rang on Saturday. His name was Teodor and he had a voice like a man who was used to being hung up on.

"I'm not going to talk you into it," he said, before she'd said anything. "That's not my job. My job is to make it possible if you want to do it and to process the deferral if you don't. Which one am I doing?"

"What happens if I defer and then next year I defer again."

"You can't. One deferral. After that it's a term or it's a fine and a note on the roll, and the fine's not the point, the note is. It says you were asked and said no."

"And nobody's ever said no."

"People say no every year. About four in a hundred. Nobody thinks less of them." A pause. "That's not true. I don't think less of them. I'm a Custodian; I don't get an opinion on the Draw. But I've worked the Returning Office for eleven years and the ones who say no, I don't think they feel good about it afterward. That's all I'll say."

"That sounds a lot like talking me into it."

"Then I apologise and withdraw it."

She stood at the sink with the phone against her ear and looked at the back fence, which needed painting, and the mango tree, which needed nothing, and thought: the kid's right about the Thursday votes. He's right that it'll be my name on the question. And then, underneath that, so quiet she almost missed it: *and whose name should it be, then.*

"What's the housing like," she said.

She did not defer. She never worked out why, exactly, and in three years of being asked she gave a different answer every time, and all of them were true. Because Kit said she would. Because of the midwife and the refrigeration apprentice, who were going. Because she had spent twenty-two years making sure other people got where they were going and had never once been asked where she thought they ought to go. Because of the war, which had eaten two mechanics and half the depot's budget and which she had, every Thursday for fourteen months, voted to continue without ever once feeling she understood what she was voting for.

Because someone had to, and the whole point of the Draw, the only point of it, was that *someone* was not supposed to be a kind of person. It was supposed to be whoever came up.

She came up.

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2. Induction

The Assembly sat in a building that had been designed, so the induction materials said, to be unimpressive. It was a long low thing of pale stone and timber on the lake, a hundred metres from the old Parliament House, which was now a museum that the hundred new members were walked through on their first morning so that they could look at the green and red chambers and the dispatch boxes and the carved coats of arms and understand what they were not.

“The whole place is built so one person can be seen talking,” said the woman leading them, who was a third-year named Hollis from Launceston and had been a dairy farmer before the Draw and would be one again in eleven months. “Everyone faces the front. One person stands. The rest shout. That’s an election building. You’ll notice ours is round.”

Theirs was round. Three hundred seats in concentric rings, no front, the floor in the middle just floor. A gallery above for the public, which was full on sitting days and silent by convention. Screens on the walls that showed, at all times, whatever the Ledger was being asked.

The Ledger was the Custodian AI, or the public face of it: the system that held the Record. Dell had been told about it in the induction pack in language that had made it sound like a very good filing cabinet, and it was that, and it was also the thing on the wall that could tell you, if you asked, every decision the Directorate of Transport had made that week, who had signed it, what Requirement it had been made under, and what else it had considered. She asked it, the second afternoon, about the Carseldine depot’s parts budget. It told her. It told her more than her own manager had ever told her. It told her the Directorate had reduced it by eleven per cent in April under a Requirement from the previous Assembly about war-footing fleet consolidation, that the reduction had been signed by a deputy director named Fitch, and that the alternative considered and rejected was to close the depot altogether and run the northern routes from Eagle Farm.

“It just tells you,” she said to Hollis.

“It has to. That’s what it’s for. It can’t make a decision about a person without a human signing it and it can’t have a goal we haven’t given it and it can’t keep a secret from us. Other than that it’s a fairly ordinary clever machine.” Hollis shrugged. “It’s not the machine you have to watch. It’s Fitch. Not Fitch himself; he’s fine, I’ve met him. But the Fitches. The Custodians have been here since before you and they’ll be here after you and they are very, very good at telling you what the problem is and then waiting for you to ask them what they’d do about it.”

“And you don’t ask.”

“You can ask. They’ll tell you, and they’ll be right, mostly. But the second you let them propose instead of report, you’ve handed them the agenda, and the agenda’s the only thing we’ve got. So you learn to say: *thank you, that’s the problem, I’ll decide what the question is.* It feels rude for about a month.”

Her cohort was a hundred people and within a week she knew which ones she’d remember.

Fen Buchanan, the Mildura apprentice, who was nineteen and had the particular watchfulness of a boy who had been the youngest in every room of his life and had decided to turn it into a skill. Grace Tjupurrula from Alice, sixty-three, who had spent thirty years on land councils and said almost nothing in sessions and was, Dell worked out by the end of the month, the person the third-years went to when they wanted to know what the room actually thought. Anil Rao, who owned a vineyard in the Barossa and three other things and had come in visibly braced for hostility and found instead that nobody cared, that the Assembly had a wealthy man in it the way it had a midwife in it, as a sample, and that his money bought him exactly one vote out of three hundred and a reputation for picking up the bill.

And Mei Harker, the Darwin midwife, who had delivered four hundred babies and had the quality Dell had seen in good mechanics and nowhere else: she could stand in a room full of noise and say *stop, listen, that’s not the right sound,* and be right.

They put Dell on Transport and Logistics, which she’d expected, and on the Standing Panel for Fleet and Infrastructure, which met every Tuesday with the Directorate in the open and had the Ledger up on the wall the whole time. Twenty members. She was the only one who had ever held a torque wrench.

“You’re going to be useful,” Hollis said, “and that’s a danger. The Custodians love useful. They’ll bring you things. Problems with a shape to them where there’s one obvious answer and it’s theirs. You’ll want to say yes because you’ll know they’re right. Say: *that’s the problem. Now show me two drafts.*“

“Even if I know the answer.”

“Especially then. You knowing the answer isn’t the point. You’re not here because you know things. You’re here because you came up.”

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3. Execution

It was a fuel question, in the end, and she was the only one on the panel who understood it, which was exactly what Hollis had warned her about.

The war was in its second year. It was a northern war, a sea war mostly, fought with other people’s weapons on the Republic’s behalf and the Republic’s weapons on other people’s, and it had the shape wars have when neither side will say what winning looks like. Fuel was the thing. Everything the Republic moved, it moved on electricity it made itself or on diesel it imported past a blockade that was

never called a blockade. The Assembly had, eight months before Dell arrived, adopted a Requirement: *civilian fleet operations are to be maintained at not less than ninety per cent of pre-conflict service levels, with priority to health, education and food distribution, and the Directorate is to report monthly on any shortfall.*

The Directorate had reported monthly. Service levels were at ninety-one per cent. Everything was fine.

Except that Dell, reading the Ledger on a Tuesday night because she couldn't sleep in the Canberra flat where the walls were too thin and Kit was on a video call with his girlfriend in the next room, had asked it a question that nobody on the panel had thought to ask, because nobody on the panel had ever planned a bus route. She'd asked it what *ninety-one per cent of service levels* meant on the ground. Routes run. Not kilometres, not passenger-hours, not any of the aggregate numbers the Directorate reported. Routes.

The Ledger told her. It told her that ninety-one per cent of service had been achieved by maintaining a hundred per cent of the routes in the inner suburbs of every capital and cancelling, consolidating or reducing to twice-daily something like a third of the routes in the outer ring, including the Carseldine northern feeders and eleven routes in Darwin's rural area and most of what served the Adelaide Hills. It told her that the decision rule had been *passenger-kilometres per litre*, that this rule had been adopted by the Directorate in a memorandum signed by Deputy Director Fitch six months earlier, and that it had not been put to the Standing Panel because, in the Directorate's assessment, it was an *operational allocation method* within the existing Requirement.

She read the memorandum twice. It was very good. It was exactly what she would have written if someone had told her to keep the buses running on less fuel. And it had decided, without anyone ever being asked, that the people who lived far from the centre of things mattered less than the people who lived near it, which was a thing about the Republic that no one had voted for.

She brought it to the panel on the Tuesday. Fitch was there. He was a tall mild man with a Custodian's habit of answering the question that had been asked and not one word past it.

"The Requirement said ninety per cent of service levels," he said. "It did not define service levels. The Directorate was obliged to define them in order to comply. We chose a measure that preserved the greatest number of passenger journeys per litre of fuel, which we judged to be the intent."

"It wasn't the intent," said Grace Tjupurrula, who was on the panel and had not spoken in six weeks. "The intent was that people could get to the hospital. Not that the most people could."

"With respect, the Requirement does not say that."

"No," said Dell. "It doesn't. That's our fault." She had the memorandum up on the wall, the Ledger's diff beside it showing in amber every place the Directorate's rule had made a choice the Requirement hadn't. "But you knew it was a choice. You wrote this. It's a good document. It's a policy document. You decided what the Republic's buses were *for* and then you did it very well, and you didn't bring it here because you knew that if you brought it here we'd argue about it for a month, and you had fuel to allocate."

Fitch was quiet for a moment. He did not look caught. He looked like a man who had spent twenty years doing his job and had just been told, correctly, where the edge of it was.

“That is a fair characterisation,” he said. “I would add that the Directorate’s view was that any allocation rule involved a choice, that no rule was neutral, and that the Panel had not indicated it wished to be consulted on allocation rules. I accept the Panel’s view that it does.”

“We’re going to refer it,” Dell said. She had never referred anything. She’d read about it the week before, in a section of the induction pack she’d skipped the first time. “To the Constitutional Jury. Not because you did anything wrong. Because I don’t know whether you did, and neither do you, and someone needs to say where the line is so the next Fitch knows.”

The panel voted to refer, nineteen to nil, Fitch abstaining because Custodians did not vote.

Afterward, in the corridor, he caught up with her.

“That was correctly done,” he said. “I want you to know that I think so. The Directorate will draft the Requirement to the new specification as soon as the Panel adopts one. And I will say, Member Marchetti, that I’ve sat with that Panel through four cohorts, and you’re the first person who’s asked the Ledger about routes.”

“I fix buses,” Dell said.

“Yes,” said Fitch. “That’s rather the point of you, isn’t it.”

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4. Thursday

The emergency referendums were on Thursdays.

They had been weekly since the war’s fourth month, when the Assembly of the time had, by referendum, at sixty-two per cent, declared a state of armed conflict, and the War Panel had been drawn, and the first question had gone to the public: *Should the Republic commit naval forces to the defence of the northern shipping lanes under the terms of the Darwin Agreement?* Seventy-one per cent yes. The questions since then had been smaller and harder. *Should the Republic extend the current deployment for a further ninety days. Should the Republic authorise strikes against shore installations within the exclusion zone. Should the Republic accept the ceasefire terms transmitted on the ninth.* That one had been forty-four per cent yes, and the war had gone on, and the Republic had voted to make it go on, and Dell had stood in the Carseldine depot with her phone in her hand and voted yes, accept the terms, and lost.

Now she sat in the round room on Thursdays and watched the question come up on the wall, drafted by the War Panel, certified by that week’s Information Panel, and watched the Republic vote on it, the numbers climbing in real time from nine in the morning when the polls opened to six at night when they

closed, and the thing she had not understood from the outside was how *quiet* the Assembly was on Thursdays. Three hundred people who were not allowed to vote except as citizens, watching the citizens vote. Nobody spoke much. People brought work and didn't do it.

"You get used to it," Mei Harker said, the third Thursday, and then, "No. That's a lie. You get used to the shape of it."

Kit rang that night. He'd stayed in Brisbane in the end, boarding with the Adeyemis, finishing school, and he rang on Thursdays because he knew.

"Fifty-three per cent," he said. "Continue."

"I know."

"Jarrah's brother's on the *Arafura*."

"I know, love."

"I turn eighteen in March. Then I get to do it too." He said it the way he said everything now, flat, like he was reporting a fault. "Every Thursday for the rest of the war I get to decide whether Jarrah's brother comes home. That's the Republic. That's the big idea."

"That's the big idea."

"It's shithouse, Mum."

"Yes," Dell said. "It is. Do you want to know what the alternative is?"

"Someone else decides."

"Someone else decides, and you never have to think about it, and Jarrah's brother still doesn't come home, and you get to be angry at the someone else, and that's all you get. That's the other big idea. It ran the world for three hundred years. You can read about it in the museum."

There was a long pause with the sound of the Adeyemis' television in it.

"The Panel writes the question," Kit said. "The Assembly's War Panel. They decide what we get asked."

"Yes."

"Are you on it?"

"No. It's drawn from the Assembly. Thirty people. They rotate a third every six months." She breathed. "I could be. Next rotation's in May."

"Would you say no?"

"You can't say no to a Draw, Kit. That's the whole—"

“You could’ve said no to the first one.”

She didn’t answer, and after a while he said goodnight, and she sat in the thin-walled flat and thought about the fifty-three per cent and about the fact that she had voted, that afternoon, on her phone like everyone else, and that this time she’d voted to continue, and that she could not have told anyone, including herself, exactly why.

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5. Two Drafts

The Constitutional Jury took eleven weeks to answer the fuel question, and when the answer came it was eleven pages long and Dell read all of it in one sitting, in the Assembly library, with the lake going grey outside.

The Directorate’s adoption of an allocation rule was execution. The Directorate’s choice of which *rule, where more than one rule was available and the rules differed materially in who they served, was policy. Where a Requirement is silent on a question of who is to be served, the Directorate’s duty is to report the silence to the Standing Panel and to maintain existing allocation pending instruction. The Directorate did not do so. The act is voided from the date of this finding. No censure is recorded against any officer, the question being novel.*

Forty-eight people drawn by lot had sat for eleven weeks with three judges whispering in their ears and had worked out, in words a mechanic could follow, where the line was. Dell found she was unreasonably moved by it. She printed it and pinned it to the wall of the flat, where Kit, visiting at Easter, read it and said, “So you won,” and she said, “No. Nobody won. Now there’s a rule,” and he looked at her the way he’d looked at the Draw letter, like it was going to try to sell him something, and then, slowly, like maybe it wasn’t.

The Panel wrote the new Requirement itself, which was unusual; usually you gave the Custodians the intent and they came back with language. But Grace Tjupurrula said, quietly, that if they were going to tell the Directorate who the buses were for, they should be able to say it in their own words, and so twenty people who had between them run a vineyard, delivered babies, driven cattle, taught Year 4 and fixed buses spent three weeks saying it.

Where fuel or fleet must be reduced, the Directorate is to reduce service such that no community’s access to a hospital, a school or a food supply is reduced by more than the national average reduction. Where this is not possible, the Directorate is to report to the Panel before acting, naming the communities affected.

Fitch read it in session, nodded once, and said, “That is implementable. It will cost roughly four per cent of fleet efficiency against the previous rule. I’m required to tell you that. I’m not required to tell you whether I think it’s worth it, and I won’t.”

“Would you?” Fen Buchanan asked. He was nineteen and had not learned not to.

Fitch looked at him for a moment. “Member Buchanan, I have a mother in Hahndorf who lost her bus in April. You’ll forgive me if I don’t answer that. It is precisely the kind of question I am here not to answer.”

The bigger thing came in June, and it came as two drafts.

The War Panel had brought a Requirement to the Assembly, and the Assembly had adopted it after two days of the most bruising debate Dell had sat through: *The Republic is to establish a register of citizens with skills critical to the maintenance of the fleet, the grid and the hospitals, and is to be able to direct such citizens to critical work for the duration of the conflict, with full income protection and a right of conscientious refusal.* It was not conscription. Everyone was very careful to say it was not conscription. It was a register of electricians and nurses and, yes, diesel mechanics, and a power to tell them where to work.

The Office of Legislative Counsel produced a draft. The University of Melbourne law school, chosen by the Assembly, produced another. They went up on the wall side by side with the Ledger’s diff between them, and the diff was mostly green: two sets of careful lawyers had read the same Requirement and written, for the most part, the same bill.

Except for section 14.

The Counsel’s draft had a section 14 that the Melbourne draft did not. It was twelve lines long and it said, in the way of such things, that a citizen directed under the Act who refused on grounds of conscience was to have that refusal *recorded on the civic roll*, and that the Directorate *may have regard to* such a record in *any subsequent allocation of public housing, Custodian employment or civic benefit*.

The Ledger had flagged it amber. Not red; red was for clauses that contradicted the Requirement. Amber was for clauses the Requirement had not asked for. The annotation said: *No corresponding instruction in the Requirement. The Requirement establishes a right of conscientious refusal. This section attaches a consequence to the exercise of that right. The drafter’s note describes this as “an administrative record-keeping provision.”*

Dell read it four times. Then she read the Requirement again. Then she read section 14 again, slowly, the way she’d read a service bulletin that said a part was fine when she could see it wasn’t.

“It’s a penalty,” she said, in session, to three hundred people. She had never spoken to the full Assembly before. Her voice came out of the room’s speakers sounding like someone else’s. “It doesn’t say it’s a penalty. It says *may have regard to*. But I’ve read a lot of maintenance manuals, and when a manual says the technician *may have regard to* something, it means do it or it’s your fault when it fails. Every Custodian who reads this will know what it means. You refuse, it goes on your roll, and for the rest of your life, every time you ask the Republic for something, there’s a note. That’s not record-keeping. That’s the right of refusal with the refusal taken out.”

The Counsel's drafter, a woman named Okonjo who had been at the Office for twenty-six years, stood to respond. Custodians could speak when asked.

"The section exists," she said, "because the Requirement as adopted contains a right of refusal with no corresponding obligation. Without some record, the register cannot function. A citizen could refuse every direction indefinitely. The Office's view was that the Assembly cannot have intended an unenforceable scheme, and that the Assembly would wish the Directorate to be able to distinguish repeated refusal from—"

"Then say that," Dell said. "Bring it back to the Panel and say: *your Requirement doesn't work, here's why, what do you want.* That's what Fitch does now. That's what the Jury said you have to do. You didn't. You wrote a penalty and called it a filing system and hoped we wouldn't read section 14, because there are three hundred of us and we're not lawyers and mostly we don't."

The room was very quiet. Up on the wall the amber clause sat beside the Melbourne draft's blank space.

"I'd like to move," Dell said, "that we take the Melbourne draft. And I'd like to move that section 14 goes to the Panel as a question. Not as a clause. As a question: *do we want to punish people for refusing.* And if we do, we say so, out loud, in our own words, and we vote on it, and it's on us. Not in a note."

They took the Melbourne draft, two hundred and eleven to seventy-four. Section 14 went to the Panel as a question. The Panel sat on it for a month and brought back a one-line answer, which the Assembly adopted: *No.*

Okonjo found her afterward, as Fitch had, in the corridor. Dell was beginning to understand that the corridor was where the Custodians actually spoke.

"You were right about the section," Okonjo said. "I want that on the record, so I'm saying it where the Ledger can hear." She nodded at the wall-screen in the corridor, which, Dell realised, was always listening, was the point. "I also want to say that I've drafted for six Assemblies and in every one of them there was somebody who read section 14. There's always somebody. The system relies on it. I don't know what we'd do if one year there wasn't."

"Draw again," Dell said. "That's the whole idea, isn't it. There's always somebody. That's what the Draw's *for*."

Okonjo smiled, not warmly, but with something like professional respect.

"You've been here five months, Member Marchetti. You sound like a third-year."

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6. Report, Don't Propose

The approach, when it came, was so gentle she almost didn't notice it.

Dell was known by then. Not famous; the Assembly did not have famous members, by design, and the gallery and the press had learned to write about Requirements and not people. But known inside the building, as the mechanic who'd read section 14, as a member who asked the Ledger the second question, and the Custodians, who noticed everything, had noticed.

He was a Director. Not a deputy, a Director, of Energy, which was the Republic's biggest directorate and in wartime its most important. His name was Castellan and he was about sixty and had the kind of ease Dell had seen in senior men her whole working life, the ease of someone who had never once been in a room where he didn't know more than everyone else.

He asked to see her. That was within the rules; any Custodian could brief any member. He came to the Panel office with a tablet and no staff and sat where she pointed and said, "I want to show you something. Not ask. Show."

What he showed her was the grid. Specifically, the northern grid, and the three solar-and-storage installations between Townsville and Cairns that had been sized before the war for a civilian load and were now carrying a civilian load plus the naval base at Cairns plus the hospital expansions plus the desalination that had been switched on when the rains failed. The Ledger's forecasts were on the tablet in Castellan's hand and they said that at current draw the northern grid would begin load-shedding in September, and that the shedding would fall, under the existing Requirement, in a particular order, and the order was that the base came last.

"Which means," Castellan said, "that Cairns Base Hospital goes dark before the fleet does. That is the Requirement. The previous Assembly adopted it in the war's second month. I'm not criticising it. I'm telling you what it does."

"And you want us to change it."

"I'm not permitted to want anything." He said it easily, without resentment, a man quoting a rule he'd lived by for forty years. "I'm reporting a problem. I've reported it to the Energy Panel, as I'm required to, three times since March. They are considering it. I'm aware that they are considering it. I'm also aware that it's June."

"So why are you here. I'm Transport."

"Because you read section 14." He set the tablet down. "The Energy Panel has twenty members and none of them has ever run a power station and all of them are, quite rightly, terrified of getting this wrong. So they keep asking me what I'd do, and I keep saying, as I'm required to, that I don't propose. And the lights go out in September. Member Marchetti, there is a form of words. If a member of the Assembly were to ask the Directorate for a *technical briefing on options*, the Directorate could set out the options. All of them. With consequences. It wouldn't be a proposal. It would be a report with more than one line in it. It's entirely within the Jury's finding. I've checked."

He had checked. She could see he had. And he was right, about the lights, about September, about the Panel. He was probably right about the form of words.

“And then,” Dell said, “the options would have a shape to them.”

“Options always have a shape to them.”

“And one of them would be the obvious one. And it’d be yours.”

“It would be the correct one,” Castellan said, gently. “I’m not sure the Republic can afford the distinction this year.”

She thought about it for a long time, long enough that he shifted in his chair. She thought about Hollis in the museum saying *it feels rude for about a month*, and about the fact that it had been five months and it still felt rude, and about the fact that this man had probably kept the lights on in three states for longer than she’d been a mechanic and had just told her, politely, that the system she had come to believe in was going to kill people in Cairns because twenty frightened amateurs wouldn’t ask him a question.

“No,” she said.

Castellan waited.

“I’ll tell you what I’ll do. I’ll go to the Energy Panel tonight, I know Mei’s on it, and I’ll tell them what you’ve told me, that the lights go out in September under the current rule and the hospital goes first. And I’ll tell them what Grace told my Panel, which is that if they want to say who the power’s *for*, they have to be able to say it in their own words, and they’ve got till the end of the month, and if they can’t, the Assembly refers it to itself and we all sit on it. Three hundred of us. We’ll be slow and we’ll be bad at it and we’ll get there. And then you’ll execute it, and it’ll be ours.”

“That is a worse process,” Castellan said, “than the one I offered you.”

“Probably. But I know what you’re doing, Director. I don’t think you know you’re doing it, but I do. You’re being helpful. You’ve been helpful for forty years and you’re very good at it, and every time a Panel got scared you were there with a form of words, and the Requirement came out looking like something you’d have written, and the Ledger never flagged it because technically you never proposed. And you’re not a bad man. The Fitches aren’t bad men. That’s what makes it work. If you were bad we’d have caught you years ago.”

She stood up.

“You’re a servant, Director. So am I, for three years. The difference is I’m a servant of the Draw and you’re a servant of the Requirement and there’s a wall between those things, and the wall’s the Republic. I’m not going to be the one who takes a brick out of it because it’s June and you’re right about the lights.”

Castellan looked at her for a long moment, and then, to her surprise, he laughed, short and genuine.

“Hollis warned me about you,” he said. “I should have listened to Hollis.”

The Energy Panel wrote their own Requirement in nineteen days. It was ugly. It was five clauses and one of them contradicted another and the Ledger flagged it red and they fixed it and it went to the Assembly and passed, two hundred and forty to thirty-one. It said the hospital came first and the base came second and the desalination came third and residential load came last, and that if that meant Cairns had brownouts in the evenings for the duration of the war then Cairns had brownouts, and that the Directorate was to publish the shedding schedule a week in advance so people could plan.

Castellan executed it. The lights dimmed in Cairns in September, on schedule, and the hospital stayed lit, and the base ran on its own generators, which it had all along and had not, Dell noted, mentioned.

She asked the Ledger about that. It told her. Of course it did.

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7. The Audit

The Humaninity Audit sat in a smaller round room on the lake side of the building and Dell was never a member of it, but in September she was called to give evidence, and it was the strangest afternoon of her term.

Sixty people, drawn by lot, three-year staggered terms, no technologists by rule. Their job, as the induction pack put it, was *to find where the Republic is succeeding by its measures and failing by its people.* They had the power to suspend any automated process for ninety days. They had used it four times in six years. Everyone in the building was a little afraid of them.

The matter was housing. Specifically, the Ledger's allocation of the Republic's universal housing stock, which was, by every measure the Housing Directorate reported, the most efficient allocation system any country had ever run. Wait times were down to nine weeks. Occupancy was at ninety-eight per cent. The system matched households to dwellings on four hundred variables, from school catchments to transport access to proximity of family, and a human Custodian signed every single allocation, as the rules required, and the AI's reasoning went into the file the household received, as the rules required, and it was, as Castellan would have said, correct.

What the Audit had noticed, because a member of the Audit was a woman from Geraldton whose son had died on the *Arafura* and who had been rehoused, and had read the reasoning in her file, and had not understood it, and had asked, was this: the system was placing war widows and bereaved parents, when they applied for rehousing, which many did, as far from the coast as the four hundred variables would allow.

Not deliberately. Nobody had told it to. But it had learned, from six years of outcomes data, that bereaved households placed near the sea had worse health outcomes, more hospital admissions, more calls to the crisis line, and it was optimising for a Requirement that said *allocate to maximise household wellbeing*, and so it was moving them inland, and the human Custodians were signing it, because the reasoning was there in the file and it was true.

“Why were you called?” asked the chair, a retired boilermaker named Dubois.

“I asked the Ledger a question,” Dell said. “In August. About why the Carseldine depot had lost three fitters to transfers since the war started, when we were already short. And it told me. It told me their households had been reallocated inland on wellbeing grounds and the fitters had followed their families. And I asked why the households had moved, and it told me, and I—” She stopped. “I didn’t know what to do with it. I’m Transport. So I flagged it to the Audit.”

“What did you think, when you read the reasoning?”

She had thought about this question for a month, knowing it was coming.

“I thought it was right,” she said. “That’s what I thought. I read the data and I thought, it’s right, they *are* healthier inland, the numbers are real. And then I thought about Mrs Adeyemi who lives next door to me in Carseldine and whose husband was a fisherman and drowned off Moreton in 2038, and who goes down to the water at Shorncliffe every Sunday and sits there for an hour, and who, if you’d asked her, if you’d given her the four hundred variables and the hospital data and all of it, would have told you to go to hell.” Dell looked at the sixty faces. “She’s not healthier for it. She’s probably not. The system’s right. And she’d tell you to go to hell, and she’d be right too, and I don’t know how to put that in a Requirement. That’s why I flagged it. That’s your job, isn’t it. The thing that’s right and wrong at the same time.”

Dubois nodded slowly.

“That’s the job,” he said. “We call it the unexplainable. The Republic’s got a word for it that sounds like a typo. You’ll have seen it on the wall.”

She had. It was carved over the door of the round room, the one word, the extra syllable in it that everyone noticed and nobody could quite say why it was there, until a moment like this one, when the Republic’s best machine had done its best work and the result was a woman who wasn’t allowed to sit by the sea.

The Audit suspended the allocation rule for ninety days, which was the fifth time in six years, and the Housing Directorate rewrote its Requirement to the Audit’s new specification, which was one sentence long and had plainly been written by the woman from Geraldton: *Where a household has lost someone, the household chooses.*

The Ledger was fine with it. The Ledger was fine with everything. That was the thing about the Ledger that Dell had taken nine months to understand: it was not the danger and it was not the solution. It was a very bright light. It showed you exactly what you had asked for, in perfect detail, without mercy, and it was then up to you to decide whether you could stand to look at it.

8. The Second Draw

The War Panel rotation came up in November, six months late because the previous Panel had voted, as it was allowed to, to extend itself once through a bad patch in the north. Ten seats. Drawn from the three hundred, by the Ledger, in open session, with the Speaker watching.

Dell had told herself she wouldn't think about it. One in thirty. She had been Drawn once in a lifetime at one in forty thousand; she had used up her share.

The Speaker that year was a man named Oduya who had been a schoolteacher in Geelong and had served his Assembly term eight years before and had then been drawn, from the pool of the former, and confirmed, and now sat in a small office with a view of the lake and signed things and opened sessions and had, in three years, refused to sign exactly once, when a referendum packet had gone out without its Information Panel's certificate, and had published two paragraphs explaining why, and had been, for about a week, the most famous person in the Republic, which he had plainly hated. He read the ten names himself. It was the only time he spoke in session.

He read hers seventh.

Nobody applauded. You didn't, for the War Panel. Mei Harker, two seats over, reached across and put her hand flat on Dell's back for a second and took it away. Fen Buchanan, who had been drawn third and was twenty now and had gone the colour of paper, looked at her across the ring and she looked back and neither of them had anything to say.

Kit rang that night before she could ring him.

"I saw."

"Yeah."

"Thursday, then."

"Thursday."

"What's the question?"

"I don't know yet. That's the job. We work it out Monday to Wednesday and the public gets it Thursday." She was sitting on the floor of the flat with her back against the wall. "The outgoing lot left a note. Said the hardest part isn't deciding what to ask. It's deciding what *not* to ask. Everything you don't put to the public, you're deciding yourself. Every week there's about fifty things that could be a question and you pick one, and the other forty-nine are on you."

"Mum."

"Yeah."

“You could’ve said no.”

“Not to this one.”

“To the first one.”

She looked at the Jury’s finding, still pinned to the wall, going yellow at the edges.

“I know, love,” she said. “I know I could’ve.”

The War Panel met in a room with no windows, which was the only room in the building that had none, and the first thing Dell understood about it was that the Defence Directorate was not Fitch and was not Castellan and was not even Okonjo. The Directorate was a woman called Admiral Ferreira who had been at sea for thirty years and in the room for two and who did not, ever, in Dell’s hearing, so much as lean toward a proposal, and who was, for that exact reason, the most frightening person Dell had ever met. Because Ferreira told you everything. Every ship, every fuel state, every casualty, every intercept, every probability the Ledger would commit to and every one it wouldn’t, and then she stopped talking and sat with her hands folded and waited for thirty civilians to decide what to do with it.

“I will not tell you what I would do,” she said, the first Monday, to the ten new faces. “I’ll tell you what I can do, what it costs, and how likely it is to work. You’ll find that’s harder than being told. It’s meant to be.”

The second thing Dell understood was that the war was not going well, and had not been for some months, and that the public did not know this, not because anyone had hidden it, the Ledger hid nothing, but because the public had stopped asking. Fifty-three per cent continue, fifty-one, fifty-four. The numbers had settled into a rhythm. The questions had settled into a rhythm. *Should the Republic extend the current deployment for a further ninety days.* People voted on Thursdays the way they put the bins out.

“That’s the fatigue,” said the Panel’s senior member, a woman named Achterberg who had eighteen months left and had the look of someone carrying a very heavy thing a long way. “Not that they’re sick of voting. That they’ve stopped noticing they’re doing it. We’ve been asking the same question for a year because it’s the question that gets a yes. Nobody on this Panel decided that. It just happened. Every week somebody says *we could ask about the ceasefire channel* and somebody else says *not this week, the numbers are soft,* and it’s never this week.”

“The channel’s open?” Fen asked.

Ferreira unfolded her hands. “There has been a back-channel through Jakarta since August. Terms substantially similar to the ninth-of-March terms the public rejected at forty-four per cent. Somewhat worse for us on the lanes. Somewhat better on the prisoners. I’ve briefed this Panel on it every Monday for eleven weeks. It’s in the Record.”

“And it’s never been the question.”

“That,” said Ferreira, “is not mine to say.”

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9. The Question

They fought about it for three weeks, which was two weeks longer than any question had been fought over since the war began, and the Thursday referendums went out meanwhile on the old rhythm, *extend ninety days*, fifty-two per cent, fifty-four, and Dell voted continue each time with her thumb on her phone and hated herself in a way she was beginning to think might be the point.

The argument was not about whether to ask. Even Achterberg, who had sat on the Panel through the worst of it, agreed by the second week that the channel had to go to the public, that a Panel which sat on a ceasefire offer for three months because *the numbers were soft* had stopped being a Panel and started being a government. The argument was about *how*.

Because the Panel wrote the question. That was the power. Not the vote; the public had the vote. The *words*. And everyone in the windowless room knew, because they’d watched it for a year, that *Should the Republic accept the terms transmitted via Jakarta on the fourteenth* got one number and *Should the Republic end the war on the terms available* got another and *Should the Republic abandon the northern lanes in exchange for the return of two hundred and eleven prisoners* got a third, and all three were true, and the Information Panel would certify any of them as fair, because they were.

“We put all three,” Fen said, the second Wednesday, very late.

“You can’t put three questions on one—”

“Not three questions. One question, three ways. We publish all three framings in the packet and we tell them that’s what we did. *The Panel could not agree how to ask this. Here’s how it looks from each side. Here’s the terms. Decide.*” He was twenty and he had not slept and he looked, for a moment, exactly like what he was: a refrigeration apprentice from Mildura who had been given the war. “They’re not stupid. They know we pick the words. Everyone knows. The only thing we’ve got that the old system didn’t is that we’re not supposed to *use* it. So don’t use it. Show them the thing we’d normally hide.”

It was, Achterberg said afterward, the only genuinely new idea the War Panel had produced in two years, and it had come from the youngest person in the room, and that was either the whole case for the Draw or a terrible indictment of the other twenty-nine of them, and probably both.

The question went out on the fourth Thursday. The packet was eleven pages, which was long. The Information Panel had certified it in a single sitting; the Panel’s chair, a hairdresser from Ballarat, was quoted in the Record as saying it was the first war packet she’d read that *didn’t feel like it was trying to*

get a particular answer out of her, and that the three framings side by side had made her *trust it more, not less, which was odd.*

Dell did not watch the numbers climb. She went outside and sat on the stone steps by the lake with her phone in her pocket, in November sun, and after a while Fitch, of all people, came and sat two steps down from her, not quite with her, and said nothing for ten minutes, which was a very Custodian kind of company.

“My mother’s bus came back,” he said eventually. “In Hahndorf. Twice daily, under the new rule. I’m not supposed to thank you for that and I’m not going to.”

“Good.”

“I’ve watched eleven War Panels. The question you put today is the first one that I think the public would have written themselves, if they’d been in the room.” He was quiet a moment. “That’s the whole trick, you know. It’s not that you’re wiser than Castellan or Ferreira or me. You’re not. It’s that you’re *them*. Three hundred of them, drawn at random, and every so often one of you asks the Ledger about routes.”

Her phone buzzed at six. She didn’t look at it. Fitch did; Custodians were allowed.

“Fifty-eight per cent,” he said. “Accept.”

She found she had been holding her breath and let it go.

“That’s not a landslide.”

“No. It’s a majority of a country that was told the truth three different ways and chose. I’d take that over a landslide.” He stood, brushing off his trousers. “The Directorate will have the instrument ready for the Speaker by Monday. Admiral Ferreira will execute. She’ll be quite relieved, I think, though you’ll never hear it from her.”

“Fitch.”

“Member Marchetti.”

“Was it the right answer?”

He looked at her with something that was nearly affection.

“I’m a Custodian,” he said. “I don’t get to have one. That’s rather the point of me, isn’t it.”

10. Going Home

The war ended on a Monday in December, by instrument, signed by a schoolteacher from Geelong, and the Republic did not celebrate exactly, because fifty-eight per cent is not a number that celebrates, but it stopped voting on Thursdays, and that was its own kind of silence, and people walked around in it for a while like they'd come out of a loud room.

The War Panel dissolved itself in the first week of January, as the constitution required, and Dell went back to Transport, and the Standing Panel, and Fitch on Tuesdays, and the long slow ordinary work of being one three-hundredth of a legislature. Kit turned eighteen in March and voted in his first quarterly referendum, on a water question and a schools question and a question about whether the Republic should ratify a fisheries treaty that Dell's Panel had nothing to do with and the External Panel had spent a year on, and he rang her afterward and said, "That's it? That's all it is?" and she said, "That's all it is, most of the time. That's the point. Most of the time it's water."

Fen Buchanan was asked to stay on the Energy Panel after his Transport rotation and did, and became, in his second year, the person the third-years went to on grid questions, which he found hilarious and never said so. Grace Tjupurrula went home to Alice at the end of her term and did not, as far as anyone knew, ever speak publicly about the Assembly again, and when a journalist found her two years later she said, "I was there. I came up. Now I'm not," and would say nothing else. Anil Rao gave the Assembly library a very large sum of money anonymously and was found out in a week because the Ledger did not do anonymous, and bore it well. Mei Harker went back to Darwin and the babies.

Hollis went home to the dairy, eleven months after Dell arrived, as she'd said she would, and on her last day she found Dell in the library and said, "You'll be the one they come to now. The new lot. You'll hate it. Tell them about the corridor. Tell them it's the Fitches. Tell them to ask the second question." And then, at the door: "And tell them it feels rude for about a month."

Dell Marchetti's term ended on the last Friday of January, in the third year, in a building designed to be unimpressive, with no ceremony. The Speaker, a new one by then, a bricklayer from Hobart, read out the hundred departing names in the order they'd been drawn, and hers was fifty-first, and when it was done the hundred stood up and the two hundred stayed seated and that was it; that was the entire ritual of the Republic for people who had held one three-hundredth of its direction for three years.

She flew to Brisbane that afternoon. The Republic paid for the ticket. It would pay her at her depot rate for a further three months while she *re-established*, which was the word, and then it would stop, and she would be a diesel mechanic at Carseldine with a note on the roll that said she had served and could not be drawn again for ten years and could never be drawn to the Assembly again at all. She could, in theory, at fifty-two or so, be drawn for Speaker. One in a few thousand. She tried not to think about it and found it was easy.

Sunny met her at the depot gate on the Monday. He'd been promoted in her absence and had the decency to look embarrassed about it.

"So," he said.

"So."

"What was it like?"

She thought about the round room and the Ledger on the wall and Fitch in the corridor and Castellan's form of words and section 14 and the woman from Geraldton and the windowless room and Ferreira's folded hands and fifty-eight per cent. She thought about the word carved over the Audit's door, with its extra syllable, and about Mrs Adeyemi on the seawall at Shorncliffe on Sundays, and about the fact that she had, in three years, never once been asked to do anything she was good at, and had done it anyway, and so had everyone else, and the Republic had held.

"Long," she said. "Mostly it was water."

She went and got her overalls from the locker, where they'd been for three years, and they still fit, and she went out to the floor, and there was a 2041 Volgren electric up on the hoist with a fault in the rear traction inverter that two apprentices had been staring at for a day, and she slid under it on the trolley and lay there for a moment looking up into the dark of the thing, and then she reached up and started to find out what was wrong.

Author's note. The Custodian Lottery Republic is a thought experiment, and this is a story about one person inside it. Nothing here is meant to prove the model works. Stories can't do that; the Devil's Advocate in this archive is right about a great deal, and Dell would be the first to say so. What a story can do is ask what it would feel like to be the someone the Draw lands on, and whether that someone, who was never meant to be a kind of person, could carry it. I think she could. I think most of us could. That, in the end, is the bet.